

LOT 13, AS SHOWN ON THE MAP OF SUBDIVISION 7201, FILED JANUARY 11, 1991, IN MAP BOOK 354, PAGE 40, CONTRA COSTA COUNTY RECORDS. EXCEPTING THEREFROM:

ALL OIL, GAS, CASINGHEAD GASOLINES AND OTHER HYDROCARBON AND MINERAL SUBSTANCES BELOW A POINT 500 FEET BELOW THE SURFACE OF SAID LAND TOGETHER WITH THE RIGHT TO TAKE, REMOVE, MINE, PASS THROUGH AND DISPOSE OF ALL OIL, GAS, CASINGHEAD GASOLINE AND OTHER HYDROCARBON AND MINERAL SUBSTANCES, BUT WITHOUT ANY RIGHT WHATSOEVER TO ENTER UPON THE SURFACE OF SAID LAND, AS RESERVED IN THE DEED FROM MARY M. HINES, ET AL., RECORDED 5, 1977, BOOK 8536, PAGE 172, OFFICIAL.

- (2) Wu's ownership interest is established nunc pro tunc as of May 9, 2023.
- (3) Tahatan-Bey and Stutson agree to not file, record, or otherwise seek to establish any lien, encumbrance, or any other document asserting any right, title, estate, lien or interested in the subject real property.
- (4) Plaintiff Wu agrees to dismiss entire action including the slander of title and declaratory relief causes of action as against Tahatan-Bey and Stutson.
- (5) This agreement will be formalized in a further settlement agreement and release.
- (6) The Court will maintain continuing jurisdiction of this action pursuant to California Code of Civil Procedure section 664.6 and a judgment may be entered and recorded reflecting this settlement.

3. 9:00 AM CASE NUMBER: C25-01431
CASE NAME: PATRICK SHANAHAN VS. ZOE HOLDING COMPANY, INC.
HEARING IN RE: APPLICATION FOR EXTENSION OF PRELIMINARY INJUNCTION
FILED BY: SHANAHAN, PATRICK
TENTATIVE RULING:

The Court **continues this hearing to August 21, 2026** at 9:00 a.m. in order to review the late-filed opposition papers and plaintiff's reply. As previously ordered, the injunction remains in effect in the interim.

4. 9:00 AM CASE NUMBER: C25-02403
CASE NAME: TOMAS RAMIREZ-NIEVES VS. WHEELCARE EXPRESS, INC
MOTION TO BE RELIEVED AS COUNSEL AS TO TOMAS RAMIREZ-NIEVES
FILED BY: RAMIREZ-NIEVES, TOMAS
TENTATIVE RULING:

The unopposed motion of **Michael Bral** to be relieved as counsel for Plaintiff **Tomas Ramirez-Nieves** is

granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Tomas Ramirez-Nieves' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff's** Counsel to be Relieved as Counsel of Record. This motion is **Granted**.

The Court will execute the Proposed Order lodged on July 8 2026 Granting Attorney Bral's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted. The withdrawal is effective upon attorney Bral's filing the proof of service of signed order on the client and all parties.

5. 9:00 AM CASE NUMBER: C25-03485

CASE NAME: JBBAH LLC, VS. RICKY LENZ

***HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT ND DEFAULT JUDGMENT IF ENTERED**

FILED BY: LENZ, RICKY CHARLES

TENTATIVE RULING:

On April 7, 2026, Defendant on his on own behalf filed a motion to set aside the default and if entered, a default judgment. Hearing was set for August 14, 2026.

Defendant is required to serve his papers on the other side and file proof of service, that is proof that the papers were served on the opposing side. In addition, the Defendant is required to file a Proposed Answer or proposed pleading that he intends to file in the lawsuit if the default is set aside.

The court on its own motion **continues the hearing on the Defendant's motion to Set Aside Default to October 2, 2026 at 9:00 a.m.** Defendant must serve his motion papers on the Plaintiff, including a proposed Answer or other pleading, on or before September 10, 2026.

On March 30, 2026, Defendant and Robin Acosta a person who described herself as Defendant's significant other appeared at the Case Management Conference hearing. Ms. Acosta stated to the court that Defendant has dementia.